

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

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JACQUELINE NIEVES,

Plaintiff designates BRONX
County as the place of trial

Plaintiff,

-against-

The basis of the venue is where
the tort arose and where
plaintiff resides

THE CITY OF NEW YORK, ROBERT HOEY P.O. OF
THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX
ID #947081, MATTHEW ESCUDERO P.O. OF THE 47
PCT., SHIELD #26192, TAX ID #948333, AND OTHER
NEW YORK CITY POLICE OFFICERS UNDER
ARREST #B16655312 WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-
IV, AS IT PERTAINS TO THE INCIDENT THAT
Arose ON OCTOBER 2, 2016 AND NO OTHER,

SUMMONS

Plaintiff resides at

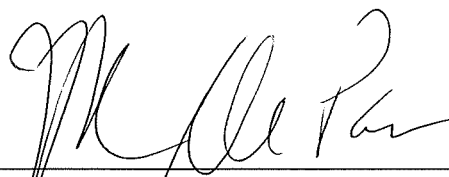
JACQUELINE NIEVES
2064 Washington Avenue
Bronx, NY 10457

Defendants.

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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York) and, in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
September 10, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD
SHIELD #19196, TAX ID #947081**

3450 Kingsbridge Avenue
Bronx, New York 10463

**MATTHEW ESCUDERO P.O. OF THE 47 PCT.
SHIELD #26192, TAX ID #948333**

4111 Laconia Avenue
Bronx, New York 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
JACQUELINE NIEVES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081, MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B16655312 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 2, 2016 AND NO OTHER,

Defendants.

-----X

JACQUELINE NIEVES, by her attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff JACQUELINE NIEVES was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 8th day of February, 2018 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081, MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B16655312 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about October 2, 2016, at approximately 3:50 A.M., in the vicinity of the inside of 3522 Barnes Avenue, County of Bronx, State of New York, the

Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff JACQUELINE NIEVES, in an excessive manner about her person, causing her physical pain and/or mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about October 2, 2016, at approximately 3:50 A.M., in the vicinity of the inside of 3522 Barnes Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff JACQUELINE NIEVES in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about October 2, 2016, at approximately 3:50 A.M., in the vicinity of the inside of 3522 Barnes Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of Bronx and there charged her with the crimes on Docket No. 2016BX042976. The Plaintiff was thereafter held in custody over the course of approximately sixteen (16) days until she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about October 2, 2016, at approximately 3:50 A.M., in the vicinity of the inside of 3522 Barnes Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station and/or correctional facility in the County of Bronx and there charged her with the crimes on Docket No. 2016BX042976. The Plaintiff was thereafter held in custody over the course of approximately

sixteen (16) hours before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about October 2, 2016 and from that time until the dismissal of charges on or about November 15, 2017, which was a favorable termination for the accused by the Honorable M. Whiten, presiding at Bronx County Criminal Court, Defendants **THE CITY OF NEW YORK, ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081, MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B16655312 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, an innocent woman without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and

instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

17. The commencement of these criminal proceedings under Docket No. 2016BX042976 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend her liberty against these unjust charges. Plaintiff at no time was in actual, constructive, or statutory possession of any contraband found at the premises. Plaintiff was helping her friend at the location by helping her cook food at the premises which was a private residence. When the police came into the residence they did so without a warrant, an exigent circumstance or consent to enter the premises and search and seize the individuals therein especially the Plaintiff herein. It should be noted the Plaintiff was in the bathroom when she was ordered to come out of the bathroom which she did. The firearm was not in plain view, rather it was behind the bar in the basement located in a covered shoe box. While the Plaintiff had bail set at her arraignments which she could not make bail, she was sent to Rikers Island where she was subject to multiple strip searches with cavity inspections totaling approximately four (4) times.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named

Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081, MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B16655312 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff **JACQUELINE NIEVES** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

24. On or about October 2, 2016, the Defendants, armed police, while effectuating the seizure of the Plaintiff **JACQUELINE NIEVES**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against her, without the Defendants possessing probable cause to do so. **ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081** was the arresting officer on the instant case. Upon entering the premise in question, **ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081** along with **MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333** arrested Plaintiff even though they had no probable cause to believe Plaintiff was in actual, constructive or statutory possession of a firearm. At the time of the arrest Plaintiff had been at a party in that location and was in the bathroom. She had no knowledge of any firearms being kept in the premises. Based on the false statements made by **ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081** and **MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333** Plaintiff was maliciously prosecuted without probable cause. These officers provided all the information that led to the Plaintiff to be prosecuted. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. Plaintiff

was sent to the Rose M. Singer Center (RMSC) on Rikers Island where she was illegally searched, seized and subjected to multiple strip-searches with cavity inspections. Please note the firearm was found in a shoe box which was closed and its contents were not visible unless someone lifted the top off the shoe box to look at the contents. At no time did the police enter the premises with a search warrant, an exigent circumstance or consent of the occupants where would allow the police to enter the premises and search the premises or seize the occupants especially the Plaintiff herein.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to her person;
 - b. Freedom from battery to her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of her liberty.
 - i. Freedom from being illegally strip-searched with a cavity inspection on multiple times.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate

indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be

reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Absent consent of occupants of an apartment the police cannot enter without a search, arrest or valid warrant unless an exigent circumstance is present which was not the case herein.
 3. The City had no policy concerning the proper procedure to enter an apartment without a valid warrant.
31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to her person and denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "31" as it set forth at length herein.
33. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police

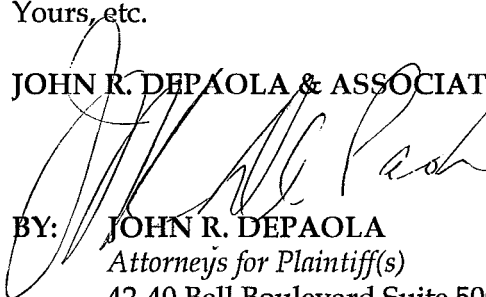
Officer Defendants, knew or should have known of the bad disposition and/or poor training of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
September 10, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  **JOHN R. DEPAOLA**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JACQUELINE NIEVES,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, ROBERT HOEY P.O. OF
THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX
ID #947081, MATTHEW ESCUDERO P.O. OF THE 47
PCT., SHIELD #26192, TAX ID #948333, AND OTHER
NEW YORK CITY POLICE OFFICERS UNDER
ARREST #B16655312 WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-
IV, AS IT PERTAINS TO THE INCIDENT THAT
Arose ON OCTOBER 2, 2016 AND NO OTHER,

Defendants.

-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
September 10, 2018



JOHN R. DEPAOLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JACQUELINE NIEVES,

Plaintiff,

-against-

THE CITY OF NEW YORK, ROBERT HOEY P.O. OF THE 50 DETECTIVE SQUAD, SHIELD #19196, TAX ID #947081, MATTHEW ESCUDERO P.O. OF THE 47 PCT., SHIELD #26192, TAX ID #948333, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B16655312 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 2, 2016 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for